

		injunction will only prevent Daniel from selling the property before the wind up. Defendants argue an injunction would harm them as it would prohibit the payment of financial obligations related to the remaining real property such as property taxes and maintenance. They also argue there is no imminent harm as some of the alleged bad faith actions took place years ago. However, the injunction would be to prevent Daniel from selling or moving assets away from Plaintiff. Defendants are correct that the scope of the requested injunction would prohibit the payment of the partnerships liabilities. However, in weighing the relative harm, the scale tips in favor of Plaintiff as without the injunction, Daniel will be able to transfer/dispose of assets that might otherwise be Plaintiff's. The Motion is GRANTED as Plaintiff has shown a reasonable probability of prevailing on each of the COA and the relative interim harm favors Plaintiff. The court will grant the injunction as requested; however SI is permitted to use its funds to pay for liabilities incurred for the upkeep of its assets (i.e. property taxes, property management fees, repairs, and investment management fees.) The court orders Plaintiff to lodge an undertaking in the amount of \$10,000 with the court within 15-days of the hearing. (Civ. Proc. Code § 592.) Plaintiff to give notice.
5	Soto v. Garden Grove Unified School District	Before the court is the Motion to Compel a Psychological Examination of Plaintiff, filed by Defendant Garden Grove Unified School District ("Defendant" or District"). As set forth below, the motion is GRANTED. Code of Civ. Proc. § 2032.310(a) states "If any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court." Per CCP § 2032.320(a), a motion for an examination shall be granted "only for good cause shown." Here, Defendant seeks to compel Plaintiff J.N. Soto to appear for a psychiatric (mental) examination on April 29, 2025 at 9:00 a.m. by Dr. Anita Herrera Hamilton, at a mutually agreeable location near Plaintiff in Orange County. The neuropsychological evaluation will take approximately 5-6 hours (not to exceed 8 hours) to conduct and consist of a history taking and observation, as well as administration of a number of psychological and neuropsychological tests. Defendant asserts good cause, as Plaintiff's mental and psychological conditions are in controversy. Plaintiff agrees that a mental examination is warranted, but the parties disagree on the

conditions of the examination. Specifically at issue are the disclosure of raw testing data, the presence of Plaintiff's mother during the examination, Defendant's expert interviewing the mother during the examination, the audio recording of the examination, and the scope of testing.

As to the release of raw test data, Defendant agrees to provide the raw test data to plaintiff's designated expert, so long as the exchange among experts is mutual. Plaintiff requests that raw data be disclosed to his attorney. The language Plaintiff proposed in the stipulation is "Dr. Herrera-Hamilton will share all raw testing data with plaintiff's counsel who may share such data with Plaintiff's psychologist." Plaintiff asserts in the opposition that his counsel "*will not* independently review the raw testing data, but rather, will share said testing data with a qualified expert neuropsychologist." (Opposition, page 6, lines 10-11.)

In analyzing the ruling in *Carpenter v. Superior Ct.* (2006) 141 Cal. App. 4th 249, the appellate court in *Randy's* held, "[t]here is no statutory authority, however, precluding a trial court from ordering the disclosure of test materials or test data when ordering a mental examination." (*Randy's Trucking, Inc. v. Superior Court* (2023) 91 Cal.App.5th 818, 834.) Further, "given the trial court's broad discretion in discovery matters, the trial court nevertheless has the power to order disclosure of test materials and data to plaintiff's attorney." (*Id.*, at 835.) "[T]he trial court reasonably could find plaintiffs had a legitimate need for the raw data and audio recording and the concerns about maintaining test security would be satisfied with a protective order. While defendants assert Dr. Victor stated she would violate her professional and ethical obligations if she transferred the raw data and audio recording to plaintiffs' attorney, Dr. Victor did not state that those obligations would be violated if a protective order were issued." (*Id.*, at 838.)

Randy's Trucking allows for the raw data to be released directly to counsel, which is what Plaintiff is requesting here. However, Plaintiff's counsel asserts that it only intends to share the data with a retained expert, thus there is no legitimate need for the raw data shown and the analysis of *Randy's Trucking* does not apply. Plaintiff has presented no reason for the data to be released directly to counsel in this case, as the intention is only to share the data with an expert. Particularly as there is no protective order in place to protect the integrity of the testing materials, the court sees no legitimate reason to order the release of raw test data directly to counsel rather than ordering the exchange of raw test data between retained experts.

As to the presence of Plaintiff's mother during the examination, Plaintiff note that he is only nine-years old and alleged to have cognitive deficits. Though Defendant cites *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739, asserting no third parties could be in the room, that case was discussing the presence of counsel at the examination as the parties agreed that the mother would attend. (*Golfland*, *supra*, 108 Cal.App.4th at 748.) Likewise, *Edwards v. Superior Court* (1976) 16

Cal.3d 905, 911, and *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 845-846 address the presence of counsel in a mental examination. *Vinson* notes that while the presence of an attorney is not required during a mental examination, "trial courts retain the power to permit the presence of counsel or to take other prophylactic measures when needed." (*Vinson*, supra, 43 Cal.3d at 846.) Accordingly, the court retains the power to permit Plaintiff's mother to attend and in light of Plaintiff's age and condition, this is a reasonable measure to protect Plaintiff. Accordingly, Plaintiff's mother may be present during the examination.

As to the request to interview Plaintiff's mother as part of the examination, neither side presents authority that is directly on point. Plaintiff points to the holding in *Reuter v. Superior Court* in which the court found that plaintiff's mother could not be compelled to submit to "a battery of psychological tests to be administered by a psychologist" as her mental condition was not in controversy. (*Reuter v. Superior Court* (1979) 93 Cal.App.4d 332, 335, 344.) That is not what is being sought here. Defendant's expert does not seek to subject Plaintiff's mother to testing, but rather to include her in the interview to clarify information about plaintiff for the purposes of diagnosis and evaluation. As Plaintiff's mother will be present anyway to protect plaintiff's rights, asking her to participate in the interview to give background information on plaintiff that a child would not know is appropriate. However, Defendant is willing to withdraw this request to the extent that Plaintiff is willing to stipulate that such information will not be sought by his own experts from the mother. Accordingly, Defendant's expert may interview the mother only as part of Plaintiff's examination, unless Plaintiff agrees to stipulate that the mother will not be interviewed by his own experts.

As to the audio recording of the examination, CCP § 2032.530(a) states "The examiner and examinee shall have the right to record a mental examination by audio technology." Despite Defendant's assertions, there is no case law limiting this to the interview portion. Though the footnote in *Vinson* uses the term "interview", the court notes that the plaintiff in that case "may record the examination on audio tape" to protect against the examiner probing into impermissible areas. (*Vinson v. Superior Court* (1987) 43 Cal.3d. 833, 846, fn 10.) It does not actually limit the recording to the interview portion of the examination. Further, Defendant's citation to federal cases is unavailing, as the case cited specifically states that they are applying federal rules, which do not allow for recording, and that California procedural rules do not apply. (*Newman v. San Joaquin Delta Community College Dist.* (2011) 272 F.R.D. 505, 515.) Accordingly, Plaintiff may record the entire examination, pursuant to statute.

As to the limitation of the tests administered, there does not appear to be a genuine conflict here. Defendant's expert will choose from the listed tests which to administer during the examination, and will not go beyond the scope of those tests identified in the order.

		Accordingly, Plaintiff is ordered to appear for mental examination with Dr. Anita Herrera Hamilton at a date and place agreed between the parties within 30 days of notice of this ruling. The exam will last for no more than 8 hours, consisting of a psychiatric interview and administration of one or more of the following: Wechsler Intelligence Scale for Children, Fifth Edition (WISC-V); Wechsler Adult Intelligence Scale, Fourth Edition (WAIS-IV); Delis Kaplan Executive Functioning System (D-KEFS); A Developmental Neuropsychological Assessment, Second Edition (NEPSY-2); California Verbal Learning Test, Third Edition; Child and Adolescent Memory Profile (CHAMP); Memory Complaints Inventory (MCI) Beery Buktenica Visual Motor Integration Task, Sixth Edition (Beery VMI); Balance Error Scoring System Dot Counting; ToMM; Green's Memory Symptoms Validity Test; Grooved Pegboard; Finger Tapping Task Medical Symptoms Validity Test; Balance and Error Scoring System; Rey 15-item Rey-Osterrieth Complex Figure; Connor's Continuous Performance Test, Third Edition (Conner's CPT3) Minnesota Multiphasic Personality Inventory, Adolescent (MMPI-A); Wechsler Individual Achievement Test, Fourth Edition; Memory Validity Profile; Adaptive Behavior Assessment System Behavioral Rating Inventory of Executive Functioning, Second Edition (BRIEF2) Behavior Assessment System for Children, Third Edition (BASC- 3), Parent Report Scale; Behavior Assessment System for Children, Third Edition (BASC-3), Self-Report, Child. Any raw data shall be exchanged between experts. The examination may be audio recorded by Plaintiff and Plaintiff's mother, Ms. Carillo may be present during the examination. Ms. Carillo may be interviewed during the examination, but limited to questions about Plaintiff and his history only. Moving party to give notice.
6	Ameris Bank vs. Allied Systems & Controls, Inc.	A) Defendant Allied Systems & Controls, Inc. 1) Form Interrogatories ("FROG") Plaintiff Ameris Bank d/b/a Balboa Capital's ("Plaintiff") unopposed motion to compel Allied Systems & Controls, Inc.'s ("Allied") initial responses to FROG is GRANTED. Plaintiff served FROG on Allied. (Tabor Decl. ¶ 2, Ex. 1.) Allied failed to serve any responses to the FROG by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are late, and Allied has waived any objections thereto. (Civ. Proc. Code § 2030.290(a).) Plaintiff's motion is proper to compel Allied's initial responses to the FROG. (Civ. Proc. Code § 2030.290(b).) Plaintiff requests monetary sanctions against Allied which are permissible. (Civ. Proc. Code §§ 2023.010 and 2030.290(c).) Plaintiff requests \$1,035 for the combined FROG, Special Interrogatory, and Requests for Production motion against Allied. (Tabor Decl. ¶ 6.) The combined motion is largely identical to the combined motion to compel defendant Barrey Stanton Camp's ("Camp") initial responses to those discovery requests, yet Plaintiff